

Vinayak Rathi Steels Rolling Mills Pvt. Ltd. v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 24 October 2017 · Writ - C No. 11716 of 2015 · **Writ petition dismissed following Dev Prayag Paper Mill; interim vacated.**

HEADNOTE

A writ challenging additional security demanded under Para 4.20 of the U.P. Electricity Supply Code, 2005, is dismissed where counsel agree the same issue has already been decided against consumers in *M/s Dev Prayag Paper Mill (Pvt) v. State of U.P.* (Writ Petition No. 30898 of 2016, 21 March 2017). Any interim stay of the demand is vacated.

FACTUAL SUMMARY

M/s Vinayak Rathi Steels Rolling Mills Pvt. Ltd. challenged a 10 October 2014 notice of *U.P. Power Corporation Ltd.* demanding additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. On 25 February 2015 the Court connected the petition with WP(C) 51884 of 2009 and stayed the demand, citing an interim order in *Supreme Ceramics (WP 51844 of 2009)*. At final hearing counsel agreed the issue had been settled against consumers in the bunch led by *Dev Prayag Paper Mill (WP 30898 of 2016, 21 March 2017)*.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ petition challenging a demand for additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005, is dismissed in terms of the Division Bench judgment dated 21 March 2017 in *M/s Dev Prayag Paper Mill (Pvt) v. State of U.P.* (Writ Petition No. 30898 of 2016); any interim order restraining the demand stands vacated. ¶ 3-5

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Dev Prayag Paper Mill (Pvt) v. State of U.P.</i> Writ Petition No. 30898 of 2016, decided 21.03.2017 High Court of Judicature at Allahabad			3-4	followed